

23STCV28438 23STCV28438

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Case Number: 23STCV28438 Hearing Date: August 21, 2026 Dept: 1

Tentative Ruling

Judge Theresa M. Traber, Department 1

HEARING DATE: August 21, 2026

CASE: Sarah Corson v. Radnet Management, Inc. et al.

CASE NO.: 23STCV28438

PETITION

TO CONFIRM ARBITRATION AWARD

Moving Party: Defendants Radnet

Management, Inc., RadNet Management I, Inc., RadNet Management II, Inc., RadNet Management III, Inc., RadNet Managed Imaging Services, Inc., RadNet Sub, Inc., and RadNet, Inc. (Arentfox Schiff LLP)

Responding Party: Plaintiff Sarah Corson (Torus LLP)

Ruling: Petition to confirm
arbitration award is GRANTED.

This case was filed as a wage-and-hour proposed class and
Private Attorney General Act (PAGA) action.

Plaintiff Sarah Corson (Plaintiff) alleged that she was employed by
defendants Radnet Management, Inc., RadNet Management I, Inc., RadNet
Management II, Inc., RadNet Management III, Inc., RadNet Managed Imaging

Services, Inc., RadNet Sub, Inc., and RadNet, Inc. (Defendants), during which employment Defendants committed various violations of labor law.

On July 23, 2024, the Court entered an order on the parties' stipulation to submit Plaintiff's individual claims, including her individual PAGA claims, to arbitration, to dismiss her class claims, and to stay "the representative PAGA claim," that is, the non-individual PAGA claims. On June 1, 2026, the arbitrator, Hon. Suzanne H. Segal (ret.), issued an award in favor of defendant Radnet Management, Inc. and against Plaintiff, awarding her no relief and dismissing her claims with prejudice. Defendants now petition the Court to confirm the award and enter a judgment in accordance with it, as well as dismissing Plaintiff's non-individual PAGA claims.

LEGAL STANDARDS

"Any party to an arbitration award in which an award has been made may petition the court to confirm, correct or vacate the award." (Code Civ. Proc. § 1285.) "A petition under this chapter shall: (1) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. (b) Set forth the names of the arbitrators. (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any." (Code Civ. Proc. § 1285.4.) "A response to a petition under this chapter may request the court to dismiss the petition or to confirm, correct or vacate the award." (Code Civ. Proc. § 1285.2.) When a petition or response is duly filed and served, the court must "confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." (Code Civ. Proc. § 1286.)

The grounds for vacating an award are:

(1) The award was procured by corruption, fraud or other undue means.

(2) There was corruption in any of the arbitrators.

(3) The rights of the party were substantially prejudiced by misconduct of a neutral arbitrator.

(4) The arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted.

(5) The rights of the party were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy or by other conduct of the arbitrators contrary to the provisions of this title.

(6) An arbitrator making the award either: (A) failed to disclose within the time required for disclosure a ground for disqualification of which the arbitrator was then aware; or (B) was subject to disqualification upon grounds specified in Section 1281.91 but failed upon receipt of timely demand to disqualify himself or herself as required by that provision. However, this subdivision does not apply to arbitration proceedings conducted under a collective bargaining agreement between employers and employees or between their respective representatives.

(Code Civ. Proc. § 1286.2(a).)

The grounds for correcting an award are:

(a) There was an evident miscalculation of figures or an evident mistake in the description of any person, thing or property referred to in the award;

(b) The arbitrators exceeded their powers but the award may be corrected without affecting the merits of the decision upon the controversy submitted; or

(c) The award is imperfect in a matter of form, not affecting the merits of the controversy.

(Code Civ. Proc. § 1286.6.)

“A petition to confirm an award shall be served and filed not later than four years after the date of service of a signed copy of the award on the petitioner. A petition to vacate an award or to correct an award shall be served and filed not later than 100 days after the date of the service of a signed copy of the award on the petitioner.” (Code Civ. Proc. § 1288.)

DISCUSSION

Plaintiff agrees that the award may properly be confirmed but argues that the Court should not dismiss her non-individual PAGA claims.

“Only an aggrieved employee has PAGA standing.” (Kim v. Reins International California, Inc. (2020) 9 Cal.5th 73, 81.) “An ‘aggrieved employee’ is defined as ‘any person who was employed by the alleged violator and against whom one or more of the alleged violations was committed.’” (Id. at 82, quoting Lab. Code § 2699(c).) The arbitrator in this matter determined that Plaintiff had not proven any of her claims, and that all claims submitted were denied and dismissed. (Petition, Attachment 8(C) [Award], p. 18.) It therefore appears that Plaintiff is not an aggrieved employee, and lacks standing to prosecute the non-individual claims that remain in this Court. They are therefore subject to dismissal.

Adolph v. Uber Technologies, Inc. (2023) 14 Cal.5th 1104 (Adolph) addressed whether a PAGA claimant may relitigate their status as an aggrieved employee after an adverse result in arbitration:

Uber contends that unless Adolph's non-individual claims are dismissed, his PAGA action will run afoul of [Viking River Cruises, Inc. v. Moriana (2022) 596 U.S. 639 (Viking River)] because he will be permitted to relitigate whether he is an aggrieved employee in court to establish standing even if he has agreed to resolve that issue in arbitration as part of his individual PAGA claim.

In response, Adolph explains that his PAGA action could proceed in the following manner if he were ordered to arbitrate his individual PAGA claim: First, the trial court may exercise its

discretion to stay the non-individual claims pending the outcome of the arbitration pursuant to section 1281.4 of the Code of Civil Procedure. Following the arbitrator's decision, any party may petition the court to confirm or vacate the arbitration award under section 1285 of the Code of Civil Procedure. If the arbitrator determines that Adolph is an aggrieved employee in the process of adjudicating his individual PAGA claim, that determination, if confirmed and reduced to a final judgment (Code Civ. Proc., § 1287.4), would be binding on the court, and Adolph would continue to have standing to litigate his non-individual claims. If the arbitrator determines that Adolph is not an aggrieved employee and the court confirms that determination and reduces it to a final judgment, the court would give effect to that finding, and Adolph could no longer prosecute his non-individual claims due to lack of standing. (See *Rocha v. U-Haul Co. of California* (2023) 88 Cal.App.5th 65, 76–82, 304 Cal.Rptr.3d 587.)

Uber makes no convincing argument why this manner of proceeding would be impractical or would require relitigating Adolph's status as an aggrieved employee in the context of his non-individual claims, and we see no basis for Uber's concern. In any event, *Viking River* makes clear that in cases where the FAA applies, no such relitigation may occur. [Citation.]

(Adolph, supra, 14 Cal.5th at 1123-1124.)

Plaintiff argues that this holding was dicta, but it is not. In *Adolph*, the plaintiff, after losing a motion to compel arbitration, had eliminated all but his PAGA claims from the litigation. (*Adolph*, supra, 14 Cal.5th at 1115.) The plaintiff then moved for a preliminary injunction preventing the arbitration from proceeding, while the defendant moved to compel arbitration of the plaintiff's independent contractor status and the enforceability of the arbitration agreement. (*Ibid.*) The trial court granted the plaintiff's motion and denied the defendant's motion. (*Ibid.*) Reviewing an affirmance by the Court of Appeal, the Supreme Court held that “*Viking River* requires enforcement of agreements to arbitrate a PAGA plaintiff's individual claims if the agreement is covered by the FAA.” (*Id.* at 1119.) The Supreme Court then considered what was to happen with the non-individual PAGA claims, which the U.S. Supreme Court had held must be dismissed. (*Ibid.*, citing

Viking River, *supra*, 596 U.S. at 663 [“When an employee’s own dispute is pared away from a PAGA action, the employee is no different from a member of the general public, and PAGA does not allow such persons to maintain suit”].) The California Supreme Court rejected Viking River’s interpretation of PAGA, holding that “where a plaintiff has filed a PAGA action comprised of individual and non-individual claims, an order compelling arbitration of individual claims does not strip the plaintiff of standing to litigate non-individual claims in court.” (Adolph, *supra*, 14 Cal.5th at 1123.) In so doing, it rejected the defendant’s contention that failing to dismiss the non-individual PAGA claims would allow re-litigation of the plaintiff’s grievance, because it agreed that any arbitration determination on that score would bind the plaintiff. (Id. at 1123-1124.)

In other words, Adolph’s holding that a determination in arbitration that the plaintiff was not aggrieved binds the plaintiff was necessary to the result, because otherwise Viking River’s rule against relitigation would have created a conflict with California law. (Adolph, *supra*, 14 Cal.5th at 1123-1124.) This Court is bound by Adolph, and through Adolph, Plaintiff is bound to the arbitrator’s determination that she did not suffer any Labor Code violations.

Plaintiff

contends that Adolph “carries an ‘Overruling Risk’ flag following *LaCour v. Marshalls of CA, LLC* (2025) 117 Cal.App.5th 505[.]” seemingly referring to a marker appearing on the Adolph opinion on WestLaw. Obviously, an opinion from the Court of Appeal cannot overrule a decision of the Supreme Court, and there is no indication in *LaCour* that Adolph is not good law for all purposes. Plaintiff offers no explanation of how anything in *LaCour* undermines Adolph’s holding. The Court is unaware what causes WestLaw to place such labels on cases, but they are not law or precedent. Adolph is.

Plaintiff argues

that she “appeared in arbitration in a different capacity than she occupies as the State’s proxy” but that is simply incorrect. The stipulation to submit to arbitration provided that Plaintiff would “submit her individual claims (including her individual PAGA claims) to final and binding arbitration[.]” (July 23, 2024 Stipulation and Order, p. 2.) Necessarily, Plaintiff went to

arbitration both in her capacity as an individual and as a PAGA claimant, as Plaintiff could not have litigated any PAGA claims except as the state's proxy.

Gavriiloglou

v. Prime Healthcare Management, Inc. (2022) 83 Cal.App.5th 595 (Gavriiloglou I) and Prime Healthcare Management, Inc. v. Superior Court (2025) 117 Cal.App.5th 127 (Gavriiloglou II) are not to the contrary. In the Gavriiloglou cases, the plaintiff went to arbitration expressly in her individual, non-PAGA capacity, while the PAGA claims remained stayed in the Trial Court. (Gavriiloglou I, supra, 83 Cal.App.5th at 598; Gavriiloglou II, supra, 117 Cal.App.5th at 135.) As Gavriiloglou II stated, "the PAGA claim was not submitted for arbitration, which means the 'gateway' finding of whether Gavriiloglou is an aggrieved employee, as well as the merits of the claim, have not been judicially resolved as required under PAGA rules." (Gavriiloglou II, supra, 117 Cal.App.5th at 144.) Here, meanwhile, Plaintiff went to arbitration both in her individual capacity on her individual non-PAGA claims and her representative capacity on her individual PAGA claims. The Gavriiloglou cases do not apply to her situation.

Plaintiff finally

contends that the non-individual PAGA claims are not extinguished by an adverse result as to the individual PAGA claims, citing Balderas v. Fresh Start Harvesting, Inc. (2024) 101 Cal.App.5th 533 (Balderas). Adolph provides otherwise, as discussed above. (See Adolph, supra, 14 Cal.5th at 1123-1124.) Even if it did not, Balderas is no help.

In Balderas, the question was whether a PAGA plaintiff had standing where she had alleged that she was "not suing in her individual capacity; she is proceeding herein solely under the PAGA, on behalf of the State of California for all aggrieved employees, including herself and other aggrieved employees[.]" in other words, without bringing any individual PAGA claims. (Balderas, supra, 101 Cal.App.5th at 538.) The Court of Appeal found that she could, because she had alleged she was an aggrieved employee, i.e. that she had been employed by the defendant and had suffered violations. (Id. at 539.) That is not the question here, where Plaintiff undisputedly brought individual PAGA claims and agreed to submit them to arbitration. It is therefore immaterial that Leeper v. Shipt, Inc. (2024) 107 Cal.App.5th

1001, review granted Apr. 16, 2025 conflicts with Balderas, because the pending dispute is beside the point. Plaintiff brought individual PAGA claims, submitted them to arbitration, and lost. Under Adolph, she lacks standing to prosecute the non-individual PAGA claims.

Plaintiff argues

that the Court should not dismiss the entire PAGA action, but permit Plaintiff leave to substitute in a new PAGA representative. Plaintiff does not suggest who that person might be. There is no indication any such person exists. Any aggrieved employee who wishes to prosecute a PAGA action always has been free to do so, but none has come forward. Plaintiff's suggestion that the Court should simply keep this case open indefinitely on the chance that an employee may come forward is without legal support, and the Court rejects it.

CONCLUSION

For the foregoing reasons, Defendant's petition is GRANTED. Defendant is to lodge a proposed judgment in accordance with this ruling and give notice.